

claims (see discussion, below), to the exclusion of the pending claims with no legal support for the request to favor herself over other creditors.

Petitioner's request for distribution of the estate's interest in real property is contrary to law. Petitioner is not an heir or devisee of decedent and has no right whatsoever to distribution of assets of the estate.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for creditor claims, the request fails and must be denied. Petitioner seeks repayment of \$10,000 and \$146,617.00 used to purchase estate real property with decedent, as well as \$42,916.66 used to pay off certain debts of decedent before the real property was purchased. Petitioner offers no legal or factual support whatsoever for these claims. Even if decedent were liable for repayment of these amounts (e.g., if they had been enforceable loans by petitioner), no creditor claims of any kind were filed by petitioner and any such claims are long since time-barred. Prob.C. § 9200(a); C.C.P. § 366.2. Neither the court nor personal representative may approve time-barred creditor claims. Prob.C. § 9253.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for advances to the estate, the request appears well supported in part. Post-death loan payments are reasonably characterized as advances to the estate for costs of administration / maintenance of estate assets as to decedent's 1/2 liability for the real property indebtedness. On the information provided in the petition (loan payments through December 2023), it appears the advances total \$39,828.92 (the other one-half applying only to personal representative's personal liability for 1/2 of the real property indebtedness). Petitioner does not allege whether similar monthly advances have continued since January 2026. Advances to the estate appear to be payable before creditor claims. As above, these are disbursements from the estate and not distributions. Even if the court were to approve disbursement for such reimbursable advances to the estate, petitioner has shown no legal basis to make such disbursement in kind where estate administration also requires payment of many other costs and claims.

Missing guardian ad litem or other fiduciary for minor heir Gabriel Plimpton. Petitioner proposes to eliminate all of minor's interest in the estate on unsupportable grounds, as above. Minor's rights and interests cannot be compromised without a suitable fiduciary having notice and opportunity to be heard. Petitioner has not shown that minor's parent is a guardian of the estate or other fiduciary who may appear to represent minor's interests in these proceedings.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

Petition to administer estate (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

This matter was continued from the November 21, 2025, probate law and motion calendar to the May 15, 2025, probate law and motion calendar. Although the court indicated one purpose of the May 15 hearing would be possible referral to a trial assignment conference calendar, this matter has not been scheduled for any trial assignment conference or trial.

Petition to administer estate (M Bakos)

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Will contest (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Missing 30 days' service of summons to all persons entitled to service of notice of the petition to probate the will.

8. S-PR-0013069 In Re the Estate of Haddox, Steven Warren

Appearance is required for hearing on petition to probate lost will after appointment of administrator on grounds of intestacy.

Notice of hearing as filed, served, and published omits ¶ 4 concerning admission of a will to probate.

Missing required "written statement of the testamentary words or their substance" of the lost will. Prob.C. § 8223.

Missing required allegations at ¶ 5b (step- or foster child(ren)).

Clarification is needed: ¶ 6f alleges no issue of parents (¶ 6b) or of grandparents (¶ 6d); ¶ 8 alleges decedent was survived by two nephews and a niece. Nieces and nephews are issue of both parents and grandparents.